

Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.62278 of 2020
(Khudadad v. The State & another)
and
Murder Reference No.148 of 2020
(The State v. Khudadad)

JUDGMENT

Date of hearing: 12.05.2025

Appellant by: M/S Rana Abdul Sattar Khan & Irfan Riaz Gondal,
Advocates.
Complainant by: Muhammad Mukhtar, son of the complainant, in
person.
State by: Rana Ahsan Aziz, Additional Prosecutor General.

Abher Gul Khan, J. Khudadad (appellant) involved in case FIR No.44/2017 dated 17.02.2017 registered under Section 302 PPC at Police Station Tarkhanawala, District Sargodha was tried by learned Additional Sessions Judge, Sargodha. Trial court *vide* judgment dated 24.11.2020 convicted and sentenced the appellant in the following terms:-

Under Section 302 (b) PPC to suffer death sentence for committing *qatl-i-amd* of Aman Ullah. He was also directed to pay compensation of Rs.3,00,000/- as compensation in terms of 544-A Cr.P.C. to the legal heirs of the deceased and in default whereof to undergo simple imprisonment for 06-months.

Challenging his conviction and sentence Khudadad (appellant) filed **Criminal Appeal No.62278 of 2020**, whereas trial court forwarded a reference which was numbered as **Murder Reference No.148 of 2020** under Section 374 Cr.P.C. to seek confirmation or rejection of the death sentence imposed on the convict, Khudadad. Both these matters are being decided through this single judgment.

2. Succinctly stated the facts of the prosecution as disclosed by Falak Sher complainant (PW.6) in FIR (Exh.PC/1) are that he is resident of Thatha Khan Baig, Dakli, Mangowali and cultivator by

profession. On 07.02.2017 at 10:30 a.m., he along with his sons Mukhtar and Muhammad Sher was present at the Dera, whereas his other son Aman Ullah was busy in cutting fodder through fodder cutting machine in a room. Meanwhile accused Khudadad came there and asked Aman Ullah to tie his calf (Jhota) along with other cattle. Aman Ullah refused and Khudadad accused went to his home. After a short while he came there with .30 bore pistol and exhorted that he would teach a lesson to Aman Ullah for not tying his calf and fired three pistol shots which hit Aman Ullah on his right eye, right side of chest and left side at back. The occurrence was witnessed by complainant Falak Sher, Mukhtar and Muhammad Sher. Upon seeing the PWs the accused decamped from the spot while waving arms. After the departure of accused, the PWs attended Aman Ullah but he succumbed to the injuries. The motive behind the occurrence was the refusal of Aman Ullah to tie the calf of accused.

3. On 17.02.2017 Muhammad Saleem SI (PW.9) after the receipt of information regarding the incident reached the place of occurrence where Falak Sher got recorded his statement/Fard Bian (Exh.PD) which was sent to Police Station for the registration of formal FIR through Muhammad Safdar 688/C. He prepared injury statement (Exh.PB), inquest report (Exh.PC) and entrusted the dead body of Aman Ullah to Muhammad Riaz 121/C for autopsy. From the spot, he took into possession blood stained earth and two crime empties of 9 mm pistol (P.7/1-2) through memo Exh.PH. He also prepared rough site plan (Exh.PK) of the place of occurrence. He arrested Khudadad (appellant) on 18.02.2017 and on his personal search 9 mm pistol (P.4) was taken into possession vide memo Exh.PF. On 02.03.2017 he obtained eight photographs (P.6/1-8) from New Sky Digital Colour Lab and Studio, Sargodha through recovery memo Exh.PG. After recording the statements of witnesses under Section 161 Cr.P.C. and complying with legal formalities, he submitted file before concerned SHO for the submission of report under Section 173 Cr.P.C.

4. Prosecution in order to prove its case against the appellant produced 9-PWs, out of whom, Dr.Khaliq Mehmood (PW.1) furnished the medical evidence, Falak Sher (PW.6) and Muhammad Mukhtar (P.7) narrated the ocular account and Muhammad Saleem SI (PW.9) investigated the case. The remaining PWs were more or less formal and acted according to the law to aid and support the investigation.

5. On 17.02.2017 at about 7:00 p.m. Dr. Khaliq Mehmood (PW.1) conducted the autopsy of Aman Ullah and noted the following injuries:-

- (1) A lacerated wound (firearm wound of entry) measuring 3 cm x 1 cm just below the right eye. Margins of the wound were inverted. Burning, blackening and tattooing were present. Underlying bone was fractured. Eyeball was crushed.
- (2) A lacerated firearm wound of entry measuring 1 cm x 2 cm on front 12 cm from right clavicle. Wound margins were inverted. Burning, blackening and tattooing were present.
- (3) A lacerated firearm wound of exit on back of left side of chest measuring 1.5 cm x 1.5 cm, 98 cm from midline. Margins of the wound were everted.
- (4) A lacerated firearm wound of exit just on frontal part of right ear, inner to the frontal lobule.

According to the doctor, the cause of death in this case was injuries No.1 & 2 which damaged vital organs in the brain and chest. The doctor described the probable time between injuries and death as immediate and time between death and postmortem as 9 to 10 hours.

6. After the conclusion of prosecution evidence, the appellant was examined under section 342 Cr.P.C. who in response to question “why this case against you and why the PWs deposed against you” replied as under:-

“Being close relatives of the deceased, the complainant and eyewitnesses involved me in this case on asking of my enemies. It was a blind occurrence.”

Appellant neither opted to appear as of his own witness under Section 340(2), Cr.P.C. nor produced any evidence in his defence. On the

conclusion of trial, the appellant was convicted and sentenced as afore-stated, hence the instant criminal appeal and murder reference.

7. It is contended on behalf of the appellant that there is a delay of about three hours in lodging the FIR for which no plausible explanation has been offered by the prosecution. In fact it was a blind murder and through concocting a fabricated story and procuring the attendance of false eyewitnesses the appellant has been booked in this case. The PWs who narrated the ocular account are chance witnesses and their depositions cannot be relied upon for maintaining the conviction of the appellant. The medical evidence is in sharp contrast with the ocular account. The prosecution remained unable to substantiate the motive set out in the FIR. The recovery of 9 mm pistol was foisted upon the appellant just to give weight to the frail prosecution case and that since the prosecution could not prove its case through reliable evidence, thus the conviction and sentence awarded to the appellant ought to be set-aside who is entitled to earn acquittal.

8. On the other hand, learned law officer assisted by son of the complainant who entered appearance in person, vehemently opposed the arguments advanced on behalf of the appellant by asserting that the FIR was chalked out within a reasonable time. The eyewitnesses successfully proved their presence at the spot. The medical evidence is in line with the ocular account. The prosecution sought corroboration from the duly proved motive and the positive report of PFSA whereby the weapon of offence recovered from the appellant stood matched with the crime empties secured from the spot and that since the prosecution successfully proved its case against the appellant beyond scintilla of doubt, hence the appellant deserves no leniency.

9. We have heard pro and contra arguments of the learned counsel for the parties well assisted by the Deputy Prosecutor General and perused the record.

10. It unveils from the perusal of record that the instant case is emerging from an incident which took place on 17.02.2017 at about

10:30 a.m. during which one Aman Ullah lost his life. According to the contents of crime report (Exh.PC/1), the allegation of actively participating in the murder occurrence was levelled towards only one accused i.e. Khudadad (appellant) and as per the story of the incident put forth by the prosecution, on 07.02.2017 at 10:30 a.m. when complainant Falak Sher (PW.6), his sons Muhammad Mukhtar (PW.7), Muhammad Sher (given up PW) and Aman Ullah (deceased) were present at the Dera, Khudadad (appellant) came there and met Aman Ullah who at the relevant time was cutting fodder through fodder cutting machine. Khudadad (appellant) asked Aman Ullah (deceased) to tie his calf (Jhota) along with the latter's cattle. Aman Ullah did not agree and Khudadad (appellant) left for his house and after sometime came back and fired three pistol shots which hit Aman Ullah on his right eye, right side of chest and left side at back due to which he succumbed to the injuries at the spot.

11. In the wake of afore-mentioned facts, we have observed that the occurrence in this case took place on 17.02.2017 at about 10:30 a.m. at a place known as Thatha Khan Baig, Dakhli Mangowali which is situated at a distance of 15-kilometers from Police Station Tarkhanwala, Sargodha. The police acquired the details of the occurrence through the oral statement/Fard Bian (Exh.PD) of Falak Sher (PW.6) which he made before Muhammad Saleem SI (PW.8) at the spot at about 12:30 p.m. on the basis of which formal FIR (Exh.PC/1) was chalked out at about 1:15 p.m. The narration of facts mentioned above though manifests that the information of crime was imparted to police after two hours of the incident and this delay remained unexplained. However, we have noticed that Fard Bian (Exh.PD/1) was prepared at the spot at 12:30 p.m. on 17.02.2017 and was dispatched to Police Station Tarkhanawala Sargodha for registration of formal FIR through Muhammad Safdar 688/C. Ghulam Hussain ASI (PW.3) chalked out FIR (Exh.PC/1) at 1:15 p.m. on 17.02.2017. Besides, Muhammad Safdar 688/C was an important witness but he was neither cited as a witness nor summoned for the

recording of evidence. Therefore, the testimony of the above-said witness was essentially required to prove the prompt registration of FIR. It will also completely be unreasonable on our part to sightlessly assent the claim of prosecution about the time upon which FIR was registered while paying no heed to withholding the most important witness in this regard. While dealing with the issue of non-production of a police constable who brought the complaint to the police station for the registration of FIR, the Supreme Court of Pakistan in case reported as Minhaj Khan v. The State (2019 SCMR 326) held as under:-

“.....the non-production of Constable Jehanzeb Khan who took the written complaint and was an eye-witness of the occurrence and of the recovery memorandums; and the inexplicable conduct of the Complainant PW-2 in not proceeding to the police station himself to register the FIR are matters of concern and collectively of incredulity. The conclusion therefrom that we draw is that the prosecution had failed to establish its case against the petitioner beyond reasonable doubt, or, at worst, that the petitioner was involved in a false case for ulterior reasons.”

Moreover, after the incident Investigating Officer, namely Muhammad Saleem SI (PW.9) visited the spot, prepared inquest report (Exh.PF) and in its column No.3 mentioned the date of incident as 17.02.2017 and described the time of occurrence as 10:45 a.m. In this way, the occurrence as canvassed by the prosecution to have been taken place at 10:30 a.m. stands belied as the Investigating Officer seems not sure regarding the actual time of incident. Last but not the least, it is observed that despite the information of crime having been conveyed to police before 12:30 p.m. still the autopsy of deceased was conducted at 7:00 p.m. The intervening duration of about 9-hours & 30 minutes between the time of incident and autopsy since remained unexplained, thus gives an indication that the FIR was not registered at the time mentioned in the relevant column. Furthermore, Dr.Khaliq Mehmood (PW.1) who performed autopsy upon the body of Aman Ullah (deceased) in his cross-examination stated that the police papers were received by him at 6:00 p.m. The unexplained delay in submission of police papers to the Medical Officer and holding

autopsy is always considered fatal for the prosecution case and leads us to conclude that the story of the prosecution was cooked up after procuring the attendance of false eyewitnesses. Reliance in this context may be placed upon the case reported as Muhammad Ilyas v. Muhammad Abid alias Billa (2017 SCMR 54) wherein the Supreme Court of Pakistan held as under:-

“Post-mortem examination of the dead body of Muhammad Shahbaz deceased had been conducted after nine hours of the incident which again was a factor pointing towards a possibility that the time had been consumed by the local police and complainant party in procuring and planting eye-witnesses and cooking up a story for the prosecution.”

12. During trial the detail of occurrence was brought on record through two eyewitnesses, namely, Falak Sher (PW.6) and Mukhtar Ahmad (PW.7) who are related with Aman Ullah (deceased) as father and brother respectively. Straightaway, it is observed by us that although both the eyewitnesses claimed to have seen the incident while being present at the spot, however after having eloquently gone through the record, we are clear in our minds in holding that their depositions cannot be made basis for maintaining the appellant's conviction and sentence. In this regard, we have noted that it is the claim of prosecution that the incident was witnessed by three eyewitnesses, namely Falak Sher (PW.6), Muhammad Mukhtar (PW.7) and Muhammad Sher (given up PW). However, according to Muhammad Saleem SI/Investigating Officer (PW.9) he visited the place of occurrence on the eventful day at 11:15 a.m. i.e. after about 45-minutes of the incident and after inspecting the dead body of the deceased prepared inquest report (Exh.PC). The perusal of Exh.PC shows that the persons who identified the dead body at the relevant time were Shaukat Hayat and Sikandar Hayat. From above it can easily be gathered that no eyewitness was present at the spot to identify the dead body. From this aspect, a safe inference which can also be drawn is to the effect that had any of the eyewitnesses been present at the spot, he definitely would have identified the dead body.

Both the eyewitnesses during examination-in-chief took a unanimous stance that Khudadad (appellant) fired two shots from his pistol hitting Aman Ullah (deceased) on his right eye and right side of his chest. However, when they were confronted with their statements (Exh.PD & Exh.DB) where three fire shots from .30 bore pistol hitting Aman Ullah (deceased) at right eye, right side of chest and left side of the back are mentioned.

It was the specific stance of complainant that at the relevant time the appellant was armed with .30 bore pistol and he had fired three shots which hit the deceased on right eye, right side of chest and on the back. In this regard, for reference sake a portion of cross-examination of Muhammad Saleem SI (PW.9) is reproduced hereunder:-

“It was the version of the complainant and eyewitnesses that accused was armed with 30-bore pistol and he had fired three shots which hit the deceased on right eye, right side of chest and on the back.”

In his cross-examination Falak Sher (PW.6) further took the stance that he along with his son Aman Ullah, Mukhtar and Muhammad Sher PWs was present at the Dera and were busy in cutting fodder through cutting fodder machine. However, when Falak Sher (PW.6) was got confronted with Exh.PD there only Aman Ullah was mentioned. Similarly Muhammad Mukhtar (PW.7) during cross-examination stated that he along with his brothers Aman Ullah and Muhammad Sher PWs as well as his father Falak Sher were busy in cutting fodder through fodder cutting machine but upon being confronted with his police statement (Exh.DB) it was found that the names of witnesses as well as Falak Sher and Muhammad Sher PWs were not mentioned. It is settled principle laid down for the appraisal of evidence that a witness who pollutes his evidence through dishonest improvements indeed compromises his own integrity which renders him unworthy of any credence. Reliance is placed upon the case reported as Sardar Bibi and another v. Munir Ahmed and others (2017 SCMR 344) wherein the Supreme Court of Pakistan has observed as under:-

“.....the improvements and omissions were made by the witnesses in order to bring the case of prosecution in line with the medical evidence. Such dishonest and deliberate improvement and omission made them unreliable and they are not trustworthy witnesses.”

13. According to FIR (Exh.PC/1) Khudadad (appellant) was shown armed with .30 bore pistol at the relevant time. However, in the court statements both the eyewitnesses omitted to mention words “.30 bore” and only deposed that the appellant fired from his pistol as by that time 9 mm pistol had already been recovered from the appellant. The allegation of pistol .30 bore was specifically made by complainant and eyewitnesses in their statements got recorded under Section 161 Cr.P.C., meaning thereby that they were well within knowledge about the types of pistols and identify them by standing close to accused, however did not corroborate the type of pistol at the time of evidence due to recovery of different weapon. In this regard, we consider it expedient to differentiate between a .30 bore pistol and a 9 mm pistol. As regards .30 bore pistol it is typically a term used in India and Pakistan and corresponds roughly to a .30 inch caliber and it denotes a rifled firearm with a bore diameter of approximately 0.30 inches. It also causes significant cavitation. On the other hand 9mm pistol denotes a bullet with a diameter of 9mm (0.355 inches) common used in semi-automatic pistols. The term 9mm handgun fires a 9mm diameter bullet and causes less severe cavitation.

The nutshell of afore-said facts is that both the weapons are entirely different in their make and appearance.

14. It has also been observed by us that despite the material improvements/afterthoughts made by both the PWs, the prosecution’s case is found to be falsified from the fact that according to Falak Sher (PW.6) **“the accused had fired at the deceased from the distance of two or four karams.”** On the other hand, Muhammad Mukhtar (PW.7) took the stance that **“the accused had fired from the distance of about 2 Karams at Aman Ullah deceased.”** In this way, both the PWs are not sure that from which distance the appellant fired

at the deceased. However, if the version of the complainant is given weight that the appellant fired at Aman Ullah (deceased) from the distance of 2-4 Karams i.e. 11-22 feet, even then the prosecution's case becomes doubtful. In this regard we have noted that according to Dr.Khaliq Mehmood (PW.1) who conducted the autopsy of Aman Ullah (deceased) noticed four firearm injuries, out of which injuries No.1 & 2 were found to be entry wounds. The doctor also observed burning, blackening and tattooing around both the entry wounds (Injuries No.1 & 2). According to the medical jurisprudence, the blackening occurs when a shot is fired from a distance of 6 to 12 inches and vanishes if the distance is more than three feet. In support of such opinion, reference can be made to **“Textbook of Forensic Science” authored by Dr.Pankaj Shrivastava**, wherein he opined as under:-

“Blackening or Smudging. In modern ammunitions, for long guns blackening effect usually can extend up to 12” and for handguns it can be seen only up to 6-8” distance from the muzzle end of the firearm around the gunshot hole.

Tattooing or Stippling or Peppering.....For long guns tattooing/gunpowder marks can be seen up to 4 ft and for handguns this effect can be seen usually up to the distance of about 2-3 ft from the muzzle end of the firearm around the gunshot hole.”

Nageshkumar G Rao in **Textbook of Forensic Medicine & Toxicology (2nd Edition)** defined the distance from where the shot is fired resulting in occurring of blackening and tattooing as under:-

“Blackening---usually seen around wound with large spread area (max 30 cm).

Tattooing----usually seen around wound with large spread area (maximum 60 cm).”

In his book Medical Jurisprudence and Toxicology (Twenty Seventh Edition), Jaising P. Modi is also found to be in agreement with the afore-mentioned view. The opinion of Jaising P. Modi for reference sake is also mentioned hereunder:-

“Blackening is found, if a firearm like a shotgun is discharged from a distance of not more than three feet and a revolver or pistol discharged within about two feet.”

In case reported as Amin Ali and another v. The State (2011 SCMR 323) the Supreme Court of Pakistan while citing the Modi's Medical Jurisprudence held as under:-

“Thus from such a distance injury with blackening cannot be caused as it can be caused from a distance of less than 3 feet as per Modi's Medical Jurisprudence.”

In another case reported as Muhammad Zaman v. The State and others (2014 SCMR 749) the Supreme Court of Pakistan observed that:-

“In Modi's Medical Jurisprudence and Toxicology (21st Edition) at page 354, it has been held that “Blackening is found, if a fire-arm like shot-gun is discharged from a distance of not more than 3 feet”.

In view of foregoing, we are of the view that both the eyewitnesses through improvements reduced the fire shots from three to two just to make their case in line with the medical evidence. It is now a settled principle of law that variation in the medical and ocular account totally mars the case of the prosecution. Reliance is placed upon the case reported as Abdul Jabbar and another v. The State (2019 SCMR 129) wherein the Supreme Court of Pakistan while dilating upon inconsistency between medical ocular evidence observed as under:-

“It is the settled principle of law that once a single loophole is observed in a case presented by the prosecution much less glaring conflict in the ocular account and medical evidence or for that matter where presence of eye-witnesses is not free from doubt, the benefit of such loophole/lacuna in the prosecution case automatically goes in favour of an accused.”

15. A specific motive was set up by the complainant while lodging the FIR (Exh.PC/1) according to which Khudadad (appellant) came at the spot and asked Aman Ullah to tie his Raas Jhota with his cattle which were tethering in the Dera. The request of the appellant was not acceded to, who got ignited and after sometime he came at the spot and committed the murder of Aman Ullah through firing shots at him. However, Falak Sher complainant (PW.6) and Muhammad Mukhtar (PW.7) during trial took the stance that Aman Ullah firstly came with the asking to let his calf tether along with the cattle of the deceased. The motive set out in the FIR is further negated from the fact that both

the eyewitnesses in their court statements admitted that they are tenants of the agricultural land owned by the appellant. In this regard, Falak Sher (PW.6) deposed that the complainant party had obtained 18/19 acres of land of Khudadad (appellant), whereas Muhammad Mukhtar (PW.7) stated that during the days of occurrence they had obtained 20 acres of appellant's land on lease. Moreover, Falak Sher (PW.6) during cross-examination admitted that previously the cattle of Khudadad (appellant) had been tethering with the cattle of Aman Ullah (deceased). Since this is an important aspect, hence a relevant portion of the cross-examination of Falak Sher (PW.6) is reproduced hereunder:-

“Prior to this occurrence two buffaloes of Khudadad accused had been tethered by Aman Ullah deceased along with his own cattle.”

All the facts mentioned above make it crystal clear that there was no occasion of denial on the part of the deceased and the prosecution could not prove its motive part of the case. It is well settled that once the motive is set up by the prosecution and the same is not proved, the prosecution shall suffer. Reliance in this context may be placed upon the case reported as *Sarfraz and another v. The State* (2023 SCMR 670) wherein the Supreme Court of Pakistan held as under:-

“It is now well established that if a specific motive has been alleged by the prosecution then it is duty of the prosecution to establish the said motive through cogent and confidence inspiring evidence. Otherwise, the same would go in favour of the accused.”

16. According to the prosecution's case, the appellant was arrested on 18.02.2017 and on his personal search 9 mm pistol (P.4) was recovered from his possession. During spot inspection, Muhammad Saleem SI (PW.9) also secured two crime empties of 9 mm pistol (P.7/1-2) on 17.02.2017. Both the crime empties and recovered pistol were sent to the office of PFSA for comparison and the report therefrom (Exh.PM) shows that both matched with each other. The afore-mentioned positive report (Exh.PM) lost its significance when seen in the context of column No.22 & 23 of inquest report (Exh.PC)

according to which no crime empty was recovered from the place of occurrence. Muhammad Saleem SI (PW.9) during cross-examination also deposed that:-

“It is correct that column No.23 of the inquest report is blank. There is no mention about empty.”

The PFSA report (Exh.PM) can further be denied from consideration on the score that both crime empties and the pistol recovered from the appellant were dispatched to the office of PFSA after the arrest of the appellant. This fact can further be verified from the admission of Muhammad Saleem SI (PW.9) who stated as under:-

“The parcel of empties was deposited in the PFSA after the arrest and recovery of the pistol from the accused.”

In such circumstances, the blankness of columns No.22 & 23 manifestly makes it clear that no crime empty was secured from the spot and apparently the same were planted by the police so as to knit the evidence for corroborating the statements of eyewitnesses. Reliance in this regard may be placed upon the case reported as Mansab Ali and another v. The State (2024 PCrLJ 617) wherein the following observation was given:-

“Furthermore, in column No.23 of the Inquest Report (Ex.CW9/D) no crime empty has been shown present there, albeit in the recovery memo (Ex.PF) and in the site plan (Ex.CW11/A), these empties have been shown recovered lying very close to the dead body of the deceased. This deliberate omission, creates reasonable doubt about the recovery.”

17. We have further taken note of the fact that during investigation on 02.03.2017 Muhammad Saleem SI (PW.9) also got printed eight photographs (P.6/1-8) from New Sky Digital Colour Lab and Studio, Sargodha which were taken into possession through memo Exh.PG. The attesting witness, namely Muhammad Riaz 121/C (PW.5) also deposed in this regard. We have minutely seen photographs (P.6/1-8) available on the record and found photograph No.9 wherein the appellant is looking in a very comfortable mood and no perplexity is apparent from his face. The photo of the accused is of the same day when photos of the dead body were made i.e. on 17.02.2017 and if the

accused was present at the sight and nominated by complainant then why Muhammad Saleem SI/Investigating Officer (PW.9) did not arrest him on the same day and the story of arrest of accused on the next day of occurrence i.e. on 18.02.2017 from whose possession pistol 9 mm was also recovered, does not make any sense. In this regard the statement of Muhammad Saleem SI (PW.9) is very relevant who admitted during cross-examination that:-

“It is correct that in one of the photographs the accused is shown present inside the house.”

18. In the light of what has been discussed above, the prosecution failed to discharge its duty in proving the case against Aman Ullah (appellant) beyond scintilla of doubt. The omissions highlighted in the above-mentioned paras demonstrate that the conviction and sentence of the appellant cannot be sustained on the basis of evidence so produced by the prosecution and as such he is entitled to get the benefit of doubt. As per saying of the Holy Prophet (ﷺ), the mistake in releasing a criminal is better than punishing an innocent person. Same principle was also followed by the Supreme Court of Pakistan in the case reported as Ayub Masih v. The State (PLD 2002 Supreme Court 1048), wherein, it was observed as under:-

“.... It will not be out of place to mention here that this rule occupies a pivotal place in the Islamic Law and is enforced rigorously in view of the saying of the Holy Prophet (p.b.u.h) that the “mistake of Qazi (Judge) in releasing a criminal is better than his mistake in punishing an innocent.”

In supra mentioned case of Ayub Masih, the Supreme Court was also pleased to observe as under:-

“...The rule of benefit of doubt, which is described as the golden rule, is essentially a rule of prudence which cannot be ignored while dispensing justice in accordance with law. It is based on the maxim, “it is better that ten guilty persons be acquitted rather than one innocent person be convicted.”

19. In consequence thereof, Criminal Appeal No.62278 of 2020 is allowed while giving benefit of doubt in favour of Khudadad (appellant); his conviction and sentence are set-aside and his stands

acquitted of the charge. He is in jail; be released forthwith if not required to be detained in any other criminal case. Resultantly, **Murder Reference No.148 of 2020** is answered in the **NEGATIVE** and death sentence awarded to Khudadad (appellant) is **NOT CONFIRMED**.

(AALIA NEELUM)
CHIEF JUSTICE

(ABHER GUL KHAN)
JUDGE

APPROVED FOR REPORTING

CHIEF JUSTICE

JUDGE

The order was
announced on
12.05.2025, the
judgment has been
dictated, prepared and
signed on 21.05.2025
Najum*